

INTERVIEW ANIL KAKODKAR

"OUR OPTION TO DO A NUKE TEST REMAINS

Atomic Energy Commission chairman Anil Kakodkar, who was closely involved with the negotiations, spoke with Managing Editor RAJ CHENGAPPA before the Parliament session began. Excerpts:

Q. You had earlier expressed concerns that the Hyde Act, that defined the scope of the Indo-US deal which was passed by the US Congress, sought to contain and cap India's nuclear strategic programme. Has this been sorted out in the bilateral 123 Agreement?

A. If you see its objectives and policies, the Hyde Act did have the provisions to do that. But in the 123 Agreement, there is a non-hindrance clause that is very, very unambiguous.

Q. Non-hindrance in what?

A. There will be no hindrance in activities that India carries out on its own, using its own material, not depending on anything that has come out of this cooperation.

Q. So does this protect India's strategic programme?

A. Yes. There is even a specific mention of our nuclear military programme and it completely separates the thing—it effectively says it is different. So, there is a legal provision that there would be no interference.

Q. Does this deal constrain our ability to conduct a future nuclear test as critics are saying?

A. There is no explicit mention about testing in the agreement. We have declared a unilateral voluntary moratorium on testing. If India needs to conduct a test, we would have to come out of this unilateral voluntary moratorium. That choice is still there for us and the decision will depend on our assessment of the total situation. Our position on testing remains unaltered. Look at it the other way, suppos-

ing this agreement is not there and a similar situation arises—there would still be an upheaval.

Q. But do we need more nuclear tests after 1998?

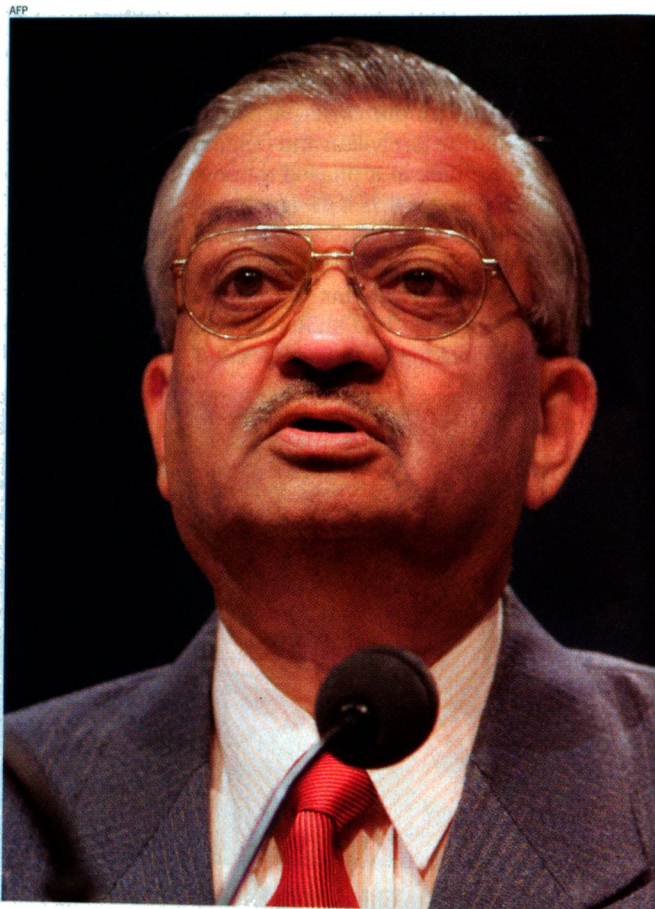
A. The 1998 tests, although the number was five, in terms of configuration and ideas, a very large number of them were tested out. Most importantly, everything that was tested, worked. That did provide us with a high degree of confidence. You are now talking about a situation that is quite unusual—that alters the fundamentals.

Q. So does the deal ensure that we have strategic fuel reserves for the new reactors so we don't end up with a Tarapur-like situation?

A. We have multi-layered assurances including the establishment of a strategic reserve apart from other corrective measures. Also, India agreeing for permanent IAEA safeguards to the reactors it designates as civilian, is conditional to the fuel supply assurances.

Q. Does the deal immunise India against such extreme situations?

A. The immunisation lies in our ability to take corrective measures even if there were to be a cessation. It has been spelt out in an unambiguous manner in the 123 Agreement. It means that we would be able to set up a strategic reserve from multiple



sources and if you have strategic reserves from a number of sources then there are automatically choices of it being available for sustained operation. On top of it, the implantation of the cessation clause is very stretched out. One has to give a notice, go through consultations and take into account the reasons why you consider that cessation is necessary.

Q. Does India now have the right to reprocess fuel that we may import under the deal?

A. There is now prior consent for reprocessing in the agreement. What we have agreed to is fuel from such reactors would be reprocessed in a dedicated national facility. And this would be done under IAEA safeguards.

Q. Critics say that the proposed dedicated national reprocessing facility would increase costs.

A. I don't see that as a problem.

"THERE IS A NON-HINDRANCE clause to our nuclear military programme that is very, very unambiguous. There would be no interference in it."